



CA INTER MAY/SEP 26/JAN 27

GST

REGISTRATION

ONE SHOT



Chapter 9: Registration

Section 22 [Person liable for Registration]

Every Supplier of G/S shall obtain Registration in state from where taxable Supplies are made if **ATO > Specified limit** in a FY.

Meaning of ATO [Aggregate Turnover]

On all India basis of Person having Same PAN.

It Includes	It Excludes
✓ Taxable Supply ✓ Exempt Supply ✓ Export of Goods & Services ✓ Supply to DP having the same PAN	✓ Inward Supplies under RCM Supply ✓ Taxes including cess under GST

Specified limits of Aggregate T/o for Registration State-Wise

States	Limit [Exclusive supply of Goods other than Notified Goods]	Limit [Otherwise]
Manipur/Mizoram/Nagaland/Tripura (MMT-N)	10,00,000	10,00,000
Arunachal Pradesh/Meghalaya/Sikkim/Uttarakhand /Puducherry /Telangana (A-STUMP)	20,00,000	20,00,000
Other States	40,00,000	20,00,000

Notes:

- Person Considered making only Supply of Goods even supply of Services Provided by way of Interest/Discount
- AATO not available if Person is engaged in making Supplies of
 - ✓ Edible Ice/Ice Cream
 - ✓ PAN masala/Tobacco Products/Substitutes
 - ✓ Fly Ash bricks / Building bricks/ fossil meal bricks/ Earthing roofing tiles

- Registration to be taken only from state from where **taxable Supplies** are made.
- If operating from **more than one state** including **Specified State** then **lower threshold limit** shall be applicable. However, if person is engaged in making exempt supplies from specified state, then lower threshold shall not be applicable.

Section 24 [Compulsory Registration]

Compulsory REG is required in following cases even if Turnover doesn't exceed the threshold:

1. Person making **Inter State taxable Supply of Goods**
Exception: limit of 10 lac/20Lac available for **Notified Handicraft & Handmade goods Inter-state Supply**. Provided Person must have PAN & generated E-way bill.
2. **Casual taxable Person** making taxable Supply
Exception: Same as above
3. Person liable to Pay tax under **RCM (Inward Supplies)**
4. **N RTP**
5. **Eco** who is Required to Collect **TCS u/s 52** or liable to pay tax u/s 9(5)
6. Person Supplying goods inter-state through **ECO**.
Note: Section 22 shall be applicable where person make **Intra state supply of goods** through **ECO**
7. Person Required to **deduct TDS u/s 51**
8. Person acting as an **agent** for taxable Person.

Section 23 [Person not liable for Registration]

1. Person engaged **Exclusively in non-taxable & Exempt Supply**.
2. **Agriculturist**, to extent Supply of Produce from Cultivation of land.
3. Person making only **RCM Supplies (outward Supplies)**.

Section 25 [Registration Procedure]

1. Person who is liable shall apply for registration **within 30 days** from the date he becomes liable for registration.
Note: CTP/N RTP shall apply **atleast 5 days prior** to commencement of business.
2. Registration is to be taken **state-wise**



3. Within a state an entity having different branches can have **single registration**, wherein it can declare once place as **Principal place of business** and other branches as **Additional place of business**.
4. A person having multiple places of business within a state or UT can apply for **separate registration** for each such place of business.
5. Person having separate registration from same PAN shall be treated as **Distinct Person** for each such registration.
6. If **one unit in SEZ & another in non SEZ** area in Same state then Separate Registration is Required.
7. Person may opt to get **voluntarily registration** under GST
8. PAN is mandatory for having the registration under GST
Exception: NRTP can get passport based Registration.
9. Effective Date of Registration:

Case	Effective Date of Registration
If applied within 30 days from date of being liable to Register	Date on which liable to register
In other cases	Date of Grant of Reg. Certificate

10. Unique Identification Number (UIN)

Who shall apply:

- ✓ Specialized Agency of UN or any financial institution of UN
- ✓ Consulate
- ✓ Embassies

Purpose- To obtain refund of tax paid on Supplies of GIS supplied to them

Notes:

- ✓ It is Centralized number not state-wise
- ✓ UIN Holder not a registered person, hence not a taxable person.

11. Temporary Registration

In a search, survey, enquiry, inspection or any other proceedings of the act, If PO finds that a person is liable for REG **but failed to apply** for REG, then such officer may register the person on temporary basis.

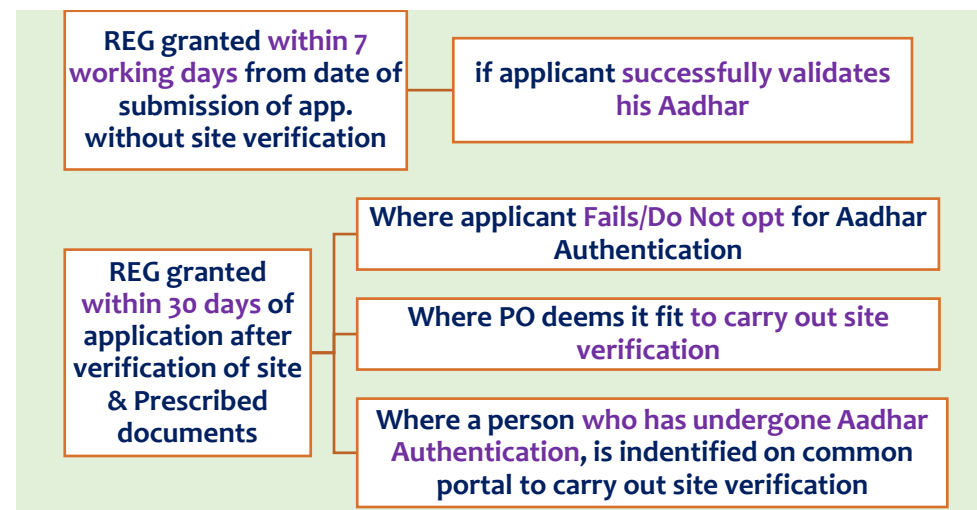
Such person shall either:

- ✓ Submit an application for REG **within 90 days** from the date of grant of temporary registration, or
- ✓ **File an appeal** against such temporary registration.

Note: if the Appellate Authority upholds the liability to REG, application for REG shall be submitted **within 30 days** from the date of issuance of such order. GSTIN thereafter granted shall be effective from the date of order of PO granting **temporary registration**.

Procedure of Registration

1. Applicant enters PAN & State/UT in Part A of GST REG-01.
2. PAN is verified via CBDT + OTP on mobile & email.
3. TRN (Temporary Reference Number) is generated.
4. Using TRN, Part B of application is filled with required details & documents.
5. Details include business info, address, bank account, authorized signatory, Aadhaar, etc.
6. Acknowledgement is issued after submission (for CTP, after tax deposit).
7. Application is forwarded to Proper Officer (PO).
8. If everything is correct then



Note: If PO fails to take any Action = **Deemed Registration**

9. If the application and accompanying documents are **incorrect**, then PO issues notice thereby seeking clarification, information or documents from the applicant electronically



within 7 working days from application submission date

within 30 days
from application
submission date

Where applicant Fails/Do Not opt for
Aadhar Authentication

Where PO deems it fit to carry out site
verification

Where a person who has undergone Aadhar
Authentication, is identified on common
portal to carry out site verification

10. If the applicant replies within 7 working days and the Proper Officer is satisfied → registration is granted within 7 working days.
Otherwise → application may be rejected.

Note: If PO fails to take any Action = Deemed Registration

11. Bank A/c details can be provided within
- 30 days from Date of Grant of Registration
 - before filing of GSTR- 1/ IFF – whichever is earlier

In case of Failure: REG shall be stand suspended & shall be automatically revoked when valid bank details are furnished. However, TDS Deductor; TCS Collector & Dept driven registered person is required to provide Bank Details at the time of registration

12. Aadhar Authentication

Specified persons (like individual, Karta, MD, WTD, partners, etc.) must complete Aadhaar authentication or provide Aadhaar proof. This is mandatory for getting GST registration. However, following persons have been exempted from Aadhaar authentication:

- | | |
|--|-----------------------------|
| ✓ A person who is not a citizen of India | ✓ Local authority |
| ✓ Department or establishment of CG/SG | ✓ Statutory body |
| | ✓ PSU |
| | ✓ A person applying for UIN |

Special Provisions Related to CTP/NRTP

CTP	NRTP
A Person who occasionally undertake transaction in state/UT where he has no POB in course or FOB	A Person who occasionally undertake transaction but no fixed POB or Residence in India
Registration: ✓ Compulsory Registration ✓ Form REG -01 ✓ PAN required ✓ Registration 5 Days before comment of Business	Registration: ✓ Compulsory Registration ✓ Form REG – 09 ✓ Passport Required ✓ Registration 5 Days before comment of Business
Composition Scheme → NA ITC on Input/Services/Capital Goods available	Composition Scheme → NA ITC only on Imported Goods
Required to submit Advance tax at time of submitting application	
Registration shall be Valid for Period for which reg is seek or 90 Days	
Note: Further extendable by 90 days	

Section 28 [Amendment of Registration]

Non-core fields: Email Id, Mobile no, Authorized Signatory etc.

Core fields:

- Legal Name of Business
- Address of Principal/Additional Place of Business
- Addition /Detection in main patterner/ Karta/MD/BOD etc.

Procedure:

- Submit application within 15 days from change
 - ✓ For Core Areas on GST common Portal. PO may permit Amendment within 15 days from application
 - ✓ For Non-Core areas, Amendment to be made on GST Portal without permission of PO by doing OTP verification
- Amended Registration Certificate granted
- If there is change in the constitution (i.e. change in PAN) or change in state then existing registration shall be cancelled and new registration has to be taken.



4. If PO fails to take any action:
 - ✓ within 15 working days from the date of submission of the application, or
 - ✓ within 7 working days from the date of the receipt of the reply to the SCN, the certificate of registration shall stand amended to the extent applied for and the amended certificate.

Section 29 [Cancellation of Registration]

1. Voluntary Cancellation (By registered Person)

Circumstance to cancel Registration (Apply within 30 days)

- a) Business Discontinued / Transferred / Armed Granted / Merger / Demerger / Disposal / Death of properties
- b) Change in Constitution of Business
- c) No Longer liable to register u/s 22 or 24
- d) Opt out of voluntary Registration

2. Circumstance when PO cancel Registration:

- a) If contravened following Provisions:
 - ✓ Mismatch of GSTR-1/1A & GSTR-3B
 - ✓ Mismatch of GSTR-2B & GSTR-3B
 - ✓ Doesn't conduct Business from Registered place.
 - ✓ Violate Provision of anti-Profiteering
 - ✓ Doesn't Provide Bank A/c details within time
 - ✓ Issue Invoice / Bill without supply of G/S
 - ✓ Avail ITC in Violence of Act
 - ✓ Violates Rule 86B (Maximum ITC allowed 99%)
- b) Registration obtained by Means of Fraud/willful misstatement/supersession of facts
- c) Voluntary REG person not commenced business within 6 months from Registration
- d) Not File return by composition supplier beyond 3m from due date.
- e) Not file return by normal supplier
 - ✓ Monthly Return - For continuous 6 months
 - ✓ Quarterly return - For 2 tax periods

Suspension of registration

Suspension During Cancellation Proceedings:

- ✓ If a RP applies for cancellation, their registration will be suspended from:
 - a. The date of submission of the cancellation request, OR
 - b. The date from which cancellation is sought, whichever is later.
- ✓ If cancellation is initiated by the department (suo-moto), PO decides the suspension date.

Suspension Due to Discrepancies or Non-Compliance:

- ✓ Registration can be suspended if there are major mismatches between:
 - a. GSTR-1/1A vs. 3B OR GSTR-2B vs. 3B, indicating violations.
 - b. Non-compliance with Rule 10A (failure to furnish bank details after registration).
- ✓ The taxpayer will be notified electronically or via email and given 30 days to explain why registration should not be canceled.
- ✓ No refund u/s 54 will be granted during the suspension period.

Restrictions During Suspension:

- ✓ The taxpayer cannot make taxable supplies during suspension i.e. No tax invoice can be issued, and no tax can be charged during this period.
- ✓ The taxpayer is not required to file GST returns

Revocation of Suspension:

- ✓ Suspension automatically ends when the cancellation proceedings conclude.
- ✓ Revocation is effective from the date the suspension started.
- ✓ PO can revoke suspension anytime during cancellation proceedings if deemed necessary.

Notes:

1. If registration was suspended due to non-filing of GST returns, suspension will end once all pending returns are filed.
2. If registration was suspended due to non-compliance with Rule 10A, suspension will be revoked upon compliance.



Effect of Suspension Revocation:

Once suspension is revoked,

- a. Revised tax invoices must be issued for supplies made during suspension.
- b. First return provisions will apply for supplies made during this period.

Amount payable on cancellation of registration [Section 29(5) & (6)]**a) Effective Date & Payment of Dues:**

- ✓ The cancellation of registration will be effective from the date decided by PO and mentioned in the cancellation order.
- ✓ PO may direct the taxpayer to pay any outstanding tax, interest, or penalty, including the amount payable u/s 29(5).

b) Reversal of ITC on Inputs:

The taxpayer must debit their E-credit/cash ledger by the higher of:

- ✓ ITC on inputs (proportionate to the invoices where ITC was claimed)
- ✓ Output tax payable on such goods.

c) Reversal of ITC on Capital Goods & Machinery:

The taxpayer must reverse ITC on capital goods or plant & machinery, whichever is higher of:

- ✓ ITC calculated on the remaining useful life (assuming a 5-year life)
- ✓ Tax on the transaction value of such capital goods as per Section 15.

3. Other Points

- a) Even after cancellation, the taxpayer is still liable to pay any pending tax or dues for the period before cancellation.
- b) If registration is canceled under the SGST/UTGST Act, it is automatically canceled under the CGST Act as well.
- c) The taxpayer will be notified via SMS and email once registration is canceled. The cancellation order will be sent to the primary authorized signatory through email and SMS.
- d) The taxpayer cannot file returns for periods after cancellation. However, they can still submit returns for the period before cancellation, when registration was active.

Revocation of cancellation of registration Section 30/Rule 23**1. Application for Revocation:**

- ✓ If PO cancels a GST registration suo-motu, the taxpayer can apply for revocation within 90 days from the date of the cancellation order.
- ✓ This period can be extended by the Commissioner or an authorized officer (not below the rank of Additional/Joint Commissioner) for up to 180 more days (i.e., 90 days + 180 days).
- ✓ If cancellation was due to non-filing of returns, the taxpayer must first file all pending returns and clear dues before applying for revocation.

2. Approval of Revocation:

If PO is satisfied, he will approve the revocation request within 30 days of receiving the application and communicate the decision to the applicant.

3. Rejection of Revocation:

- ✓ If the officer intends to reject the revocation request, he must first issue SCN to the applicant.
- ✓ The applicant must submit a reply within 7 working days of receiving the SCN.
- ✓ PO must then dispose of the application (approve/reject) within 30 days of receiving the applicant's response.

4. Filing of Pending Returns After Revocation:

Once cancellation is revoked, the taxpayer must file all pending returns (from the effective cancellation date to the date of revocation order) within 30 days of the revocation order.

Note: if fails to do so then it can become one of the grounds for Suo-moto cancellation of registration by PO [Amendment]

5. Deemed Revocation Under CGST Act:

If cancellation is revoked under the SGST Act / UTGST Act, it is automatically deemed revoked under the CGST Act.





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